

**CHAPTER i**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Aberdeen Harbour.

[28th November 1957.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.
2. This Act may be cited as the Aberdeen Harbour Order Confirmation Act 1957.

Confirmation
of Order in
schedule.

Short title.

SCHEDULE

ABERDEEN HARBOUR

Provisional Order to alter the period prescribed by the Aberdeen Harbour Act 1895 within which application is to be made to Parliament for an Act to determine and regulate the administration of the harbour of Aberdeen.

WHEREAS by the Aberdeen Harbour Act 1895 (hereinafter referred to as "the Act of 1895") the Acts then in force relating to the harbour of Aberdeen were consolidated with amendments and the Aberdeen Harbour Commissioners (hereinafter referred to as "the Commissioners") were constituted :

And whereas by the Aberdeen Harbour Acts 1895 to 1956 (hereinafter referred to as "the Harbour Acts") further powers were conferred on the Commissioners :

And whereas among the Acts consolidated by the Act of 1895 was the Aberdeen Harbour Act 1868 of which section 2 (Firstly recited Act and part of secondly recited Act repealed ; Commencement and duration of this Act) enacted that that Act should continue in force for the space of fifty-five years namely until the first day of October one thousand nine hundred and twenty-three and from thence to the end of the then next session of Parliament and of which section 183 (Upon the expiration of this Act the property of the harbour to revert to the council) enacted that upon the expiration of that Act the property of the harbour undertaking should revert to or become the property of the lord provost magistrates and town council of the city and royal burgh of Aberdeen (hereinafter referred to as "the council") :

And whereas at the date of the passing of the Act of 1895 there were twenty-eight years of the said period of fifty-five years unexpired and section 199 (Saving rights &c. of the council) of the Act of 1895 enacted inter alia that the council should not less than three years before the expiration of the said period of twenty-eight years apply to Parliament for an Act to determine and regulate the administration of the harbour undertaking :

And whereas by subsequent enactments the said period of duration of the Harbour Acts was extended and is now due to expire on the first day of April one thousand nine hundred and sixty :

And whereas it is expedient that the period within which the council are required as aforesaid to apply to Parliament for an Act to determine and regulate the administration of the harbour undertaking should be altered as provided in this Order :

And whereas the purpose aforesaid cannot be effected without an Order confirmed by Parliament under the Private Legislation Procedure (Scotland) Act 1936 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1. This Order may be cited as the Aberdeen Harbour Order Short title and 1957 and this Order and the Aberdeen Harbour Acts 1895 to 1956 citations. may be cited together as the Aberdeen Harbour Acts 1895 to 1957.

2. Subsection (4) of section 199 (Saving rights &c. of the council) Amendment of the Act of 1895 which provides that the council shall not less of Aberdeen Harbour Act 1895. than three years before the expiration of the Harbour Acts apply to Parliament for an Act to determine and regulate the administration of the harbour undertaking shall be read and have effect as if for the words “three years” where occurring in the said subsection there were substituted the words “one year” and the council shall accordingly make such application as aforesaid not later than the first day of April one thousand nine hundred and fifty-nine.

3. All costs charges and expenses of and incident to the preparing Costs of Order. for obtaining passing and confirming of this Order or otherwise in relation thereto shall be paid by the Commissioners from and out of the revenues of their harbour undertaking.



Table of Statutes referred to in this Act

Short title	Session and chapter
Aberdeen Harbour Act 1868... ..	31 & 32 Vict. c. cxxxviii.
Aberdeen Harbour Act 1895... ..	58 & 59 Vict. c. cxxxvi.
Private Legislation Procedure (Scotland) Act 1936	26 Geo. 5 & 1 Edw. 8. c. 52.

Ch. i

*Aberdeen Harbour Order
Confirmation Act, 1957*

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British Transport Commission Order Confirmation Act, 1957

6 ELIZ. 2 Ch. ii

ARRANGEMENT OF SECTIONS

Section

1. Confirmation of Order in schedule.
2. Short title.

SCHEDULE

BRITISH TRANSPORT COMMISSION

1. Short and collective titles.
2. Interpretation.
3. Incorporation of general Acts.
4. Power to make works.
5. Period for completion of railways.
6. Power to acquire lands.
7. Disregard of recent improvements and interests.
8. Period for compulsory purchase of lands.
9. Incorporation of provisions of Orders of 1948 1951 and 1953.
10. Stopping up Blairshinnoch Level Crossing.
11. Stopping up Capledrae Level Crossing.
12. As to certain level crossings.
13. Saving for town and country planning.
14. Arbitration.
15. Costs of Order.

SCHEDULE—Level crossings referred to in section 12 (As to certain level crossings) of this Order—

Part I.

Part II.

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